

**SYNTHETIC TRAINING RECORD — FICTIONAL PARTIES, PEOPLE,  
PLACES, IDENTIFIERS, AND EVENTS — NOT A REAL FILING  
COUNTERFACTUAL — NEVER FILED OR ENTERED — DOES NOT  
ALTER THE ACTUAL DISTRICT RECORD**

# **Counterfactual Post-Stay-Denial Release Order**

United States Court of Appeals for the Fourth Circuit Blue Ember Biologics, LLC v. Granite Heron Logistics, Inc. No. SYN-CA4-26-CV-4105-CF-NEVER-OCCURRED Entered July 30, 2026

The clerk is directed to release mandate today. The counterfactual panel entered its opinion and judgment July 9, 2026. No rehearing petition was filed by the July 23 Rule 40 deadline. Granite Heron moved to stay mandate on July 27, Blue Ember opposed on July 28, and the panel denied the motion on July 29. No stay, recall order, or other direction now prevents ordinary issuance.

The seven-day interval following expiration of the rehearing period initially ended July 30. Denial of the timely stay motion would have made August 5 the later default under Rule 41(b), but the July 29 denial expressly shortened that post-denial interval and directed release today. The forthcoming mandate will transmit the two-component judgment affirming mitigation JMOL and the \$2,700,000 amended judgment.

This administrative order adds no merits holding. It does not decide the dormant conditional Rule 59 ruling, direct a retrial, or disturb liability and causation. It is confined to the denial path on the never-filed docket and cannot be combined with a route in which mandate was stayed.

Entered by the Fictional Fourth Circuit exercise clerk on July 30, 2026, with electronic notice to Maya Holt, Jonas Bell, Eli Mercer, and Tara Webb.